

**CHAPTER xxxii**

An Act to make further provision with regard to the trolley vehicles public service vehicles and markets undertakings of the mayor aldermen and burgesses of the borough of Huddersfield to make further provision with regard to the improvement health local government and finances of the borough to enact provisions with respect to the superannuation of certain officers and servants and for other purposes. [14th July 1953.]

**W**HEREAS the borough of Huddersfield is a county borough under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas it is expedient to make further provision in reference to the trolley vehicles and public service vehicles undertakings of the Corporation and to authorise the acquisition of lands for the purposes of those undertakings and of the markets undertaking of the Corporation:

And whereas it is expedient to make further provision in reference to the improvement health and local government of the borough:

And whereas it is expedient that the provisions contained in this Act relating to the payment of superannuation and other allowances to officers and servants contributing to the superannuation fund of the Corporation and of pensions to widows and dependants of such officers and servants should be enacted:

And whereas it is expedient to make further provision in regard to the finances of the Corporation:

And whereas it is expedient that the other provisions contained in this Act be enacted:



And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

## PART I

### PRELIMINARY

Short and collective titles. 1.—(1) This Act may be cited as the Huddersfield Corporation Act 1953.

(2) The Huddersfield Corporation Acts 1852 to 1949 the Huddersfield Order 1948 (confirmed by the Ministry of Health Provisional Order Confirmation (Huddersfield) Act 1948) and this Act may together be cited as the Huddersfield Corporation Acts 1852 to 1953.

(3) The Huddersfield Corporation (Trolley Vehicles) Acts Schemes and Order 1913 to 1940 and this Act may be cited as the Huddersfield Corporation (Trolley Vehicles) Acts Schemes and Order 1913 to 1953.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Transport.

Part III.—Lands.

Part IV.—Streets.

Part V.—Sanitation buildings etc.

Part VI.—Superannuation.

Part VII.—Finance.

Part VIII.—Miscellaneous.

Part IX.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.



(2) In this Act unless the subject or context otherwise requires—

PART I  
—cont.

“ the Act of 1933 ” “ the Act of 1936 ” and “ the Act of 1947 ” mean respectively the Local Government Act 1933 the Public Health Act 1936 and the Town and Country Planning Act 1947 ;

“ the appointed day ” (except for the purposes of Part VI (Superannuation) of this Act) has the meaning assigned to it by section 61 (The appointed day) of this Act ;

“ the borough ” means the borough of Huddersfield ;

“ the commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly ;

“ the Corporation ” means the mayor aldermen and burgesses of the borough ;

“ the council ” means the council of the borough ;

“ daily penalty ” means a penalty for each day on which an offence is continued after conviction therefor ;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough ;

“ financial year ” means the period of twelve months ending on the thirty-first day of March in any year ;

“ the general rate fund ” means the general rate fund of the borough ;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 and by this Act ;

“ local authority ” means the council of any borough urban district or rural district ;

“ the Minister ” (except in section 4 (Minister may authorise new trolley vehicle routes) and section 8 (Revision of fares) of this Act) means the Minister of Housing and Local Government ;

“ road authority ” in relation to any road means the authority (being either the council of a county the council of a borough or the council of an urban district) which is responsible for the maintenance of the road ;



PART I  
—cont.

“statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;

“the town clerk” “the medical officer” “the surveyor” and “the sanitary inspector” mean respectively the town clerk the medical officer of health the surveyor and any sanitary inspector of the borough ;

“trolley vehicle route” means any route upon which the Corporation are or may be for the time being authorised to work and use trolley vehicles.

(3) For the purposes of—

(a) the Huddersfield Corporation (Trolley Vehicles) Acts Schemes and Order 1913 to 1953 ;

(b) the Road Traffic Acts 1930 to 1947 in their application to the Corporation ; and

(c) any other enactment for the time being relating to the Corporation ;

the expression “trolley vehicle” means a mechanically propelled vehicle which is adapted for use upon roads without rails and which is moved by electrical power transmitted thereto from some external source or which in case of emergency or during the turning of the vehicle is moved by some other source.

(4) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

## PART II

## TRANSPORT

Minister may  
authorise new  
trolley vehicle  
routes.

4.—(1) (a) If at any time the Corporation desire to provide equip maintain and use trolley vehicles upon any road dedicated to the public use whether within or outside the borough not forming part of any trolley vehicle route for the time being authorised they may make application to the Minister of Transport (in this section referred to as “the Minister”) and the Minister is hereby empowered to make an order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road or roads to which such application relates and containing



such incidental provisions as the Minister may deem expedient and subject to the terms of the order the provisions of the Huddersfield Corporation (Trolley Vehicles) Act 1936 shall apply as if the use of trolley vehicles upon such road were authorised by that Act.

PART II  
—cont.

(b) No order authorising the use of trolley vehicles on any road in the borough of Halifax or on any road which is situate outside the borough (as constituted on the twenty-seventh day of November nineteen hundred and fifty-two) and along which stage carriages (as defined by the Road Traffic Act 1930) were being run on the first day of January nineteen hundred and fifty-three by the mayor aldermen and burgesses of the borough of Halifax either alone or in conjunction with any other person shall be made without the consent of the said mayor aldermen and burgesses.

(c) No order authorising the use of trolley vehicles on any road in any area (other than the borough of Halifax) which is situate outside the borough shall be made without the consent of the local authority of such area and of the road authority having jurisdiction over such road but the consent of any such local authority or road authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister.

(d) Any trolley vehicle route and the powers relating thereto authorised by the Minister under this section shall be deemed to form part of the trolley vehicles undertaking of the Corporation.

(2) An order made under this section shall be subject to special parliamentary procedure and the First Schedule to the Statutory Orders (Special Procedure) Act 1945 (which prescribes the notices to be given and other requirements to be complied with before an order is made) shall in its application to any such order have effect as if paragraph 1 of the said schedule included a provision requiring the Corporation to comply with any direction which may be given by the Minister as to posting and maintaining notices giving the purport of the application in relation to any road or roads to which it relates in that road or in those roads.

(3) The expression "Act of Parliament" in section 7 of the Telegraph Act 1878 (which makes provision as to work done in pursuance of Acts of Parliament involving any telegraphic lines) shall be construed as including any order made under this section authorising the execution of works.

(4) Section 14 (Minister may authorise new routes) of the Huddersfield Corporation (Trolley Vehicles) Act 1936 is hereby repealed.



PART II  
—cont.

Extension  
of power to  
provide  
trolley vehicle  
connecting  
routes.

5. Section 4 (Power to use trolley vehicles) of the Huddersfield Corporation (Trolley Vehicles) Act 1936 shall have effect as if the following were substituted for the proviso to paragraph (d) of subsection (1):—

“ Provided that nothing in this paragraph shall empower the Corporation to use trolley vehicles along any such other street or road within the borough for the purpose of connecting trolley vehicle routes where the distance between the points to be connected exceeds one mile and nothing in this paragraph shall empower the Corporation to use such vehicles along any such other street or road beyond the borough for the purpose of connecting such routes where the distance between the points to be connected exceeds four hundred and forty yards.”

Fares and  
charges on  
trolley vehicles.

6.—(1) Notwithstanding anything contained in any other enactment the Corporation may demand and take for passengers and parcels carried on their trolley vehicles such fares and charges as they may think fit.

(2) The following enactments as applied to trolley vehicles by any enactment or scheme are hereby repealed:—

Huddersfield Corporation Tramways Act 1900—

Section 45 (As to fares on Sundays or holidays) ;

Section 46 (Cheap fares for labouring classes) ;

Section 47 (Periodical revision of rates and charges) :

Huddersfield Corporation Act 1913—

Subsections (2) and (3) of section 28 (Fares rates and charges) ;

Section 29 (Payment of fares rates and charges) :

Huddersfield Corporation (General Powers) Act 1920—

Section 12 (Fares) ;

Section 13 (Cheap fares for labouring classes) ;

Section 14 (Revision of fares).

Obligation  
to provide  
certain services.

7.—(1) Unless and until the Corporation permanently discontinue the running of trolley vehicles upon any trolley vehicle route situate wholly or partly outside the borough they shall and they are hereby required to run on every such route a proper and sufficient service of trolley vehicles each way every morning and evening (Sundays Christmas Day Good Friday and Bank Holidays always excepted) at such times not being later than eight o'clock in the morning or earlier than five o'clock in the evening as may be most convenient for the purpose of meeting the needs of the district served by such route:



Provided that on Saturdays the Corporation in lieu of running such trolley vehicles after five o'clock in the evening shall run the same at such hours between half-past eleven o'clock in the morning and two o'clock in the afternoon as may be most convenient for the purpose aforesaid.

(2) If complaint is made to the Minister of Transport that such proper and sufficient service is not provided the said Minister after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the said Minister to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

8.—(1) If at any time after the opening for public traffic of any trolley vehicle route outside the borough or any portion of such trolley vehicle route it is represented in writing to the Minister of Transport (in this section referred to as “the Minister”) by the local authority of the district in which such trolley vehicle route is situate or by the county council of the administrative county of the West Riding of Yorkshire that in the circumstances then existing all or any of the fares and charges demanded and taken in respect of the traffic on such trolley vehicle route or on such portion should be revised the Minister may after such inquiry as he thinks fit direct that all or any of such fares and charges shall be altered or modified in such manner as he may think fit. Revision of fares.

(2) If in pursuance of the provisions of subsection (1) of this section the Minister shall direct that the fares and charges demanded and taken in respect of traffic on any trolley vehicle route or portion thereof shall be altered or modified the Corporation shall not except with the consent of the Minister demand or take within a period of twelve months after the giving of such direction fares and charges in respect of such traffic in excess of the fares and charges as so altered or modified.

9.—(1) Section 38 (Power to provide and run omnibuses) of the Huddersfield Corporation Act 1913 shall have effect as if in subsection (1) the words “demanding and taking such reasonable fares and charges for the conveyance of passengers therein as may be approved by the Board of Trade” were omitted. Fares on public service vehicles.

(2) Subsection (4) of section 27 (Further powers for running omnibuses) of the Huddersfield Corporation (General Powers) Act 1920 is hereby repealed.

10. Subsections (2) and (3) of section 27 (Further powers for running omnibuses) of the Huddersfield Corporation (General Powers) Act 1920 are hereby repealed. Amendment of section 27 of Act of 1920.



PART II  
—cont.

Numbers of  
passengers  
in trolley  
vehicles.

**11.**—(1) The trolley vehicles of the Corporation shall not be deemed to be stage carriages for the purposes of sections 13 to 15 of the Railway Passenger Duty Act 1842.

(2) Paragraph (h) of section 94 of the Road Traffic Act 1930 shall have effect as though the expression “public service vehicle” included any trolley vehicle of the Corporation and any regulations for the time being in force under the said section by virtue of the said paragraph shall with any necessary adaptations and subject to any express provision of the regulations be construed accordingly.

Lost property.

**12.** Paragraph (j) of section 94 of the Road Traffic Act 1930 shall have effect as though the expression “public service vehicle” included any trolley vehicle of the Corporation and any regulations for the time being in force under the said section by virtue of the said paragraph shall with any necessary adaptations and subject to any express provision of the regulations be construed accordingly.

## PART III

## LANDS

Purchase of  
land for certain  
undertakings.

**13.**—(1) The Corporation by means of an order made by the Corporation and submitted to the appropriate Minister and confirmed by him may be authorised to purchase compulsorily—

(a) land whether within or outside the borough for the purposes of the trolley vehicles undertaking or the public service vehicles undertaking of the Corporation ;  
and

(b) land within the borough for the purposes of the markets undertaking of the Corporation :

Provided that the Corporation shall not by means of an order under this section be authorised to purchase any land within the area of a local authority in the administrative county of the West Riding of Yorkshire except with the consent of the local authority concerned.

(2) For the foregoing purposes the appropriate Minister shall be the Minister of Transport in respect of the trolley vehicles undertaking or the public service vehicles undertaking and the Minister in respect of the markets undertaking.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946.

(4) For the purposes of this section the expression “the markets undertaking of the Corporation” includes all lands



buildings premises apparatus charter manorial and other rights powers and privileges for the time being vested in held used or enjoyed by the Corporation for the purposes of the markets market halls market places slaughter-houses abattoirs lairages wharves or landing-places for cattle railway sidings approach roads and cold air stores or refrigerators established or acquired or to be established or acquired by the Corporation and any services or facilities which the Corporation undertake or provide in connection therewith.

PART III  
—cont.

14.—(1) For the purpose of any enactment empowering the acquisition by the Corporation of land by agreement for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily the Lands Clauses Acts (except the provisions relating to access to the special Act and except sections 127 to 132 of the Lands Clauses Consolidation Act 1845) shall so far as concerns any such acquisition be deemed to be incorporated with such enactment and in construing those Acts for the purposes of this section such enactment shall be deemed to be the special Act and the Corporation shall be deemed to be promoters of the undertaking.

Application of  
Lands Clauses  
Acts to  
purchases by  
agreement.

(2) The powers exercisable under this section shall be in addition to the powers exercisable under any other enactment.

#### PART IV STREETS

15. In this Part of this Act the expression “structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of a permanent building.

Interpretation  
of this Part  
of Act.

16.—(1) In any street in the borough not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund:

Urgent repairs  
of private  
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed twenty-five pounds for each one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the borough relating to private street works or private street improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.



PART IV  
—cont.Attachment of  
street lamps  
brackets etc.

17.—(1) Subject to the provisions of this section the Corporation may affix to any building in the borough such lamps brackets pipes electric lines and apparatus (in this section called “attachments”) as may be required for the purposes of street lighting.

(2) The Corporation shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the Corporation any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the authority thinks fit.

(4) Where any attachments have been affixed to a building under this section the owner of the building may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the Corporation compensation to be determined in case of dispute in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(6) In this section the following expressions have the meanings hereby assigned to them:—

“appropriate authority” means a court of summary jurisdiction except that in relation to a building mentioned



in the first column of the following table it means the Minister specified in relation thereto in the second column of that table:—

PART IV  
—cont.

|                                                                                                                                                                                                                                                                                                                                                                                       |                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.                                                                                                                                                                                                                                     | The Minister of Civil Aviation. |
| Building which—<br>(i) is subject to a building preservation order made under section 29 of the Act of 1947; or<br>(ii) is included in a list of buildings of special architectural or historic interest compiled or approved under section 30 of the last-mentioned Act; or<br>(iii) is alleged by the owner thereof to be a building of special architectural or historic interest. | The Minister.                   |
| Building owned by a highway authority or railway or canal undertakers.                                                                                                                                                                                                                                                                                                                | The Minister of Transport.      |
| Building owned by electricity or gas undertakers.                                                                                                                                                                                                                                                                                                                                     | The Minister of Fuel and Power. |
| Building owned by statutory water undertakers.                                                                                                                                                                                                                                                                                                                                        | The Minister.                   |

“ building ” includes a structure and a bridge or aqueduct over a street ;

“ owner ” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building ;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome ;

(c) in relation to any other building the person who is receiving the rack-rent or who would receive the rack-rent if the building were let at a rack-rent ;

and the expression “ owned ” shall be construed accordingly.

**18.**—(1) No person shall place or erect in the borough any structure at or within a distance of ten yards from the corner of any street unless he has given to the Corporation notice of his intention so to do accompanied by plans and particulars of the structure and the Corporation have approved the placing or erection thereof under this section : Erection of structures at street corners.



PART IV  
—cont.

Provided that this subsection shall not apply to any structure being development which by virtue of the Act of 1947 and any development order for the time being in force thereunder may be undertaken only with permission granted on an application or an advertisement which may be displayed only with consent granted on an application under regulations for the time being in force under section 31 of that Act.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they disapprove the placing or erection of the structure or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the structure would by obstructing the view of foot-passengers or drivers of vehicles constitute a danger to the traffic on the street upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Corporation may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them and if within the said five weeks the Corporation have not given notice under the last foregoing subsection they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

(4) Where the Corporation have approved the placing or erection of the structure it shall not be placed or erected—

- (a) otherwise than in accordance with the plans and particulars submitted as aforesaid; or
- (b) if notice has been given under subsection (2) of this section of any conditions or modifications otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by any notice given under subsection (2) thereof may within twenty-one days from the service of the last-mentioned notice appeal to the Minister of Transport who may make such order as he thinks fit and whose decision shall be final.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a penalty not exceeding five pounds.



(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at or within a distance of ten yards from the corner of a street for the purpose of the construction alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who placed or erected it shall be liable to a penalty not exceeding five pounds.

(8) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he is convicted may order him within such time as may be fixed by the order to remove the structure in respect of which he was convicted and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(9) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

(10) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

19.—(1) If it appears to the Corporation that any tree which is nearer to a street in the borough than a distance equal to the height of the tree is in a condition likely to endanger vehicles or pedestrians the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to remove top lop or prune the tree within twenty-one days so as to prevent such danger. Dangerous trees.

(2) Any person aggrieved by a requirement imposed by a notice under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice served on him under this section the Corporation may themselves carry out the requirement of their notice and recover from that person the expenses reasonably incurred by them in so doing.



## PART IV

—cont.

Removal of  
trees etc. from  
streets.

20. If any tree building or structure or any part thereof shall fall on or across any street in the borough the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree building or structure or any part thereof was situated from the occupier thereof.

Mixing of  
mortar in  
streets.

21.—(1) No person shall mix mortar or any like substance in any street in the borough repairable by the inhabitants at large except upon such board or in such receptacle as will protect the street from such mortar or substance :

Provided that this section shall not apply to the mixing in any street of mortar or like substance for the purposes of making up maintaining repairing altering or improving such street.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding forty shillings.

## PART V

## SANITATION BUILDINGS ETC.

Power to  
cleansse drains  
etc.

22. The Corporation may on the application of the owner or occupier of any premises in the borough undertake the cleansing of any drains water-closets sinks or gullies in or connected with the premises and may make such charge (if any) for so doing as they think fit.

Summary  
power to  
remedy  
stopped-up  
drains etc.

23.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in the borough a drain private sewer water-closet or soil pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with the Corporation may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served :

Provided that where the said expenses do not exceed two pounds the Corporation may (if they think fit) remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

(a) whether any requirement contained in a notice served under this section or any work done by the Corporation was reasonable ; and



- (b) whether the expenses incurred by the Corporation in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

24.—(1) Where the Corporation are satisfied that—

As to defective  
premises.

- (a) any house in the borough or the roof of any building in the borough is in such a state (in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance ; and

- (b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such house or building (in this section referred to as “the premises”) the procedure prescribed in sections 93 to 95 of the Act of 1936 ;

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation intend to remedy the defective state of the premises themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he intends to remedy the defective state of the premises and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such premises.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation



PART V  
—cont.

may execute such works and take such steps as may be necessary to remedy the defective state of the premises to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

- (i) the alleged defective state did not exist at the time of the service of the notice ; or
- (ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936 ; or
- (iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the premises.

(b) A person against whom proceedings are taken under subsection (3) of this section (hereafter in this section referred to as “ the original defendant ”) shall upon information duly laid by him and on giving to the Corporation not less than three clear days’ notice of his intention be entitled to have any person to whose default or unlawful act or sufferance he alleges that the defective state of the premises was due brought before the court in the proceedings and if the original defendant proves that the defective state of the premises arose or continued by the default or unlawful act or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person ; or
- (ii) to apportion the expenses between persons by whose defaults acts or sufferances the defective state of the premises arose or continued in such manner as the court may deem fair and reasonable.

(c) Where the original defendant seeks to avail himself of the provisions of paragraph (b) of this subsection—

- (i) the Corporation as well as the person to whose default or unlawful act or sufferance the original defendant alleges that the defective state of the premises is due shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence ; and



(ii) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) The powers and functions of the Corporation under this section may be exercised by the medical officer or the sanitary inspector.

**25.—**(1) Where it appears to the surveyor that a structure in the borough or any part of such structure is in such a state as to require treatment for the removal of any immediate danger the surveyor or any officer authorised by the council may on behalf of the Corporation take such steps as may be necessary to remove the immediate danger and any steps so taken and any expenses thereby incurred shall for the purposes of this section be deemed to have been taken and incurred by the Corporation. Dangerous structures.

(2) Before exercising their powers under this section in respect of a structure the Corporation shall give notice of their intention so to do to the owner and the occupier thereof:

Provided that the Corporation shall not be required to give notice to an owner or occupier unless his name and address are known to them.

(3) The Corporation may recover from the owner of the structure any expenses incurred under this section but without prejudice to the right of the owner to recover the amount of the said expenses from any person liable to pay the expenses of the repair of the structure.

(4) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

(a) the alleged immediate danger did not exist; or

(b) the need to remove the danger was not so urgent as to justify the Corporation themselves taking such steps instead of complying with the provisions of section 75 of the Towns Improvement Clauses Act 1847 or section 251 (Dangerous places to be repaired or enclosed) of the Huddersfield Improvement Act 1871 or section 79 (As to dangerous buildings Amending section 251 of the Improvement Act of 1871) of the Huddersfield Waterworks and Improvement Act 1876 or section 58 of the Act of 1936.



PART V  
—cont.

(5) (a) Where for the purpose of removing any danger the Corporation have in the exercise of their powers under this section damaged or demolished any building the owner thereof may apply to a court of summary jurisdiction to determine whether the Corporation were justified in so doing.

(b) In any case in which the court determines that the Corporation were not so justified the owner of such building shall be entitled to be paid compensation by the Corporation.

(c) The amount of any compensation payable under paragraph (b) of this subsection shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

(6) Nothing in this section shall authorise the Corporation to interfere with any structure (not being a house or a building used as offices or showrooms) belonging to the commission and held by them for the purposes of their undertaking without first giving to the commission reasonable notice of their intention to do so.

(7) In this section the expression "structure" includes any building or wall or other structure and anything affixed to or projecting from any building or wall or other structure.

26.—(1) Where it appears to the Corporation that any building or structure or part of a building or structure in the borough is in such a condition as to be dangerous to persons in such building or structure or any adjoining premises or using any street upon which such building or structure abuts the Corporation may until either—

(a) the building or structure shall have been repaired protected or enclosed in pursuance of section 251 (Dangerous places to be repaired or enclosed) of the Huddersfield Improvement Act 1871 or pulled down in pursuance of section 79 (As to dangerous buildings Amending section 251 of the Improvement Act of 1871) of the Huddersfield Waterworks and Improvement Act 1876 ; or

(b) any order made by a court of summary jurisdiction under section 58 of the Act of 1936 in respect of such building or structure shall have been complied with or executed ;

employ and pay watchmen and do all such other acts as may be necessary to watch such building or structure and may recover the expenses reasonably incurred by them in so doing from the owner of the building or structure :

Provided that the Corporation shall forthwith give to the owner of any building or structure notice that they propose to



employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building or structure.

PART V  
—cont.

(2) In this section the expression “structure” includes any wall or other structure and anything affixed to or projecting from any building wall or other structure.

27.—(1) No dealer shall in the borough—

Prohibition  
of sale of  
verminous  
articles.

(a) prepare for sale ;

(b) sell or offer or expose for sale ; or

(c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the borough—

(a) being prepared or offered by a dealer for sale ; or

(b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Corporation may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(5) For the purposes of this section—

(a) the expression “dealer” means a person who trades or deals in any household article ;

(b) the expression “household article” means an article of furniture bedding or clothing or any similar article ;  
and

(c) the expression “preparation for sale” shall not include disinfestation.



PART V  
—cont.

Compensation  
for stopping  
employment to  
prevent spread  
of disease.

**28.**—(1) If with a view to preventing the spread of—

- (a) a notifiable disease ; or
- (b) a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 ; or
- (c) pulmonary tuberculosis ;

the medical officer requests in writing any person to discontinue his employment the Corporation may if they think fit compensate him for any loss occasioned by his compliance with the request.

(2) In this section the expression “notifiable disease” means—

- (a) any notifiable disease as defined by section 343 of the Act of 1936 ; and
- (b) any infectious disease to which section 144 of that Act for the time being applies in the borough by virtue of regulations made under section 143 thereof.

Nuisance from  
pigeons etc.

**29.**—(1) For the purpose of abating or mitigating any nuisance annoyance or damage caused in the borough by house-doves pigeons or starlings having or believed by the Corporation to have no owner or of preventing or minimising any such nuisance annoyance or damage which might in the opinion of the Corporation be so caused the Corporation may notwithstanding anything in the Larceny Act 1861 or in any other Act or at common law—

- (a) seize and humanely destroy or cause to be seized and humanely destroyed any such house-doves pigeons or starlings in excess of such number as the Corporation consider reasonable ;
- (b) sell or otherwise dispose of or cause to be sold or otherwise disposed of the carcasses of any such house-doves pigeons or starlings ; and
- (c) take such other steps as they think necessary for any such purpose :

Provided that the Corporation shall not in the exercise of the powers conferred by this section—

- (i) enter upon any premises (other than a public highway) without the consent of the occupier or the person having the exclusive control and management of the premises ; or
- (ii) execute or do any work or thing affecting the structure of any building or the use of any land without the consent of the owner of the building or land.

(2) Nothing in this section shall authorise the seizure or destruction of any wild bird in contravention of the provisions of the Wild Birds Protection Acts 1880 to 1939 or any order made thereunder.



**30.** As from the appointed day no premises in the borough shall subject to the provisions of subsection (7) of section 14 of the Food and Drugs Act 1938 as applied by this section be used for the sale or the manufacture for the purposes of sale of any frozen liquid of the nature of a sweet or confection or for the storage of any such frozen liquid intended for sale unless they are registered in accordance with the provisions of section 14 of the Food and Drugs Act 1938 and the provisions of the said section shall apply to such premises in all respects as if they were premises used for the sale or the manufacture for the purposes of sale of ice-cream or the storage of ice-cream intended for sale.

Registration of premises used for sale etc. of certain frozen liquids.

**31.—(1)** The Corporation may by notice require the owner or occupier of any premises or place in the borough at which any exhibition performance amusement game or sport to which the public are admitted is held given or provided to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction maintain during the continuance of such exhibition performance amusement game or sport in a suitable position such number of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

Provision of sanitary conveniences at places of amusement.

(2) Any person aggrieved by a requirement made under subsection (1) of this section may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice served on him under this section within such reasonable period after the date of the service of the notice as may be specified therein he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings:

Provided that in any proceedings under this subsection it shall be open to the defendant to question the reasonableness of the Corporation's requirements or of their decision to address their notice to him and not to the occupier or as the case may be the owner of the premises.

(4) Section 89 of the Act of 1936 shall have effect in its application to the borough as if for the words "refreshment-house or place of public entertainment" there were substituted the words "or refreshment-house".

(5) The provisions of this section shall not apply to any premises or place to which the provisions of section 80 (Byelaws as to pleasure fairs &c.) of the Huddersfield Corporation Act 1949 apply.



## PART VI

## SUPERANNUATION

Interpretation  
of this Part  
of Act.

**32.**—(1) In this Part of this Act except as otherwise expressly provided and unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings and—

“the Act of 1937” means the Local Government Superannuation Act 1937 ;

“the appointed day” means the first day of April nineteen hundred and fifty-four ;

“average remuneration” has the meaning assigned to it by subsection (5) of section 8 of the Act of 1937 as applied by subsection (2) of this section ;

“national service” in relation to any person means compulsory national service within the meaning of the Superannuation (Miscellaneous Provisions) Act 1948 and includes any period immediately following the termination thereof during which the person with the consent of the Corporation continues in similar service ;

“the regulations” means the National Health Service (Superannuation) Regulations 1950 ;

“the superannuation fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937.

(2) In their application to a contributory employee to whom this Part of this Act applies—

(a) subsection (5) of section 8 of the Act of 1937 shall have effect as if for the word “five” wherever it occurs there were substituted the word “three” ;

(b) subsection (6) of section 8 of the Act of 1937 shall have effect as if the reference to subsection (1) of the said section 8 included a reference to this Part of this Act ;

(c) subsection (7) of section 8 of the Act of 1937 shall have effect as if the reference to subsection (2) of the said section 8 included a reference to this Part of this Act ;

(d) subsection (5) of section 12 of the Act of 1937 shall have effect as if the reference to superannuation allowance included a reference to superannuation allowance retiring allowance death gratuity or widow’s pension payable in accordance with this Part of this Act.

Commence-  
ment and  
application of  
this Part of Act.

**33.** This Part of this Act shall come into operation on the appointed day and shall apply to—

(a) every person who is or becomes a contributory employee of the Corporation ; and



- (b) any justices' clerk or assistant to a justices' clerk who by virtue of section 22 of the Justices of the Peace Act 1949 is or becomes or is deemed to be or become a contributory employee of the Huddersfield Magistrates Courts Committee ;

on or after the appointed day :

Provided that this Part of this Act shall not apply to—

- (1) any person who immediately before the appointed day is or is deemed to be a contributory employee and who before the first day of June nineteen hundred and fifty-four gives notice to the Corporation that he desires that this Part of this Act shall not apply to him ; or
- (2) any employee of the Corporation who by virtue of Part III or Part IV of the regulations may become entitled to superannuation benefits under the Act of 1937 as modified by the regulations or would have become so entitled had he not exercised the option under the regulations or under any regulations thereby revoked to retain former superannuation benefits.

34.—(1) The provisions of this section shall apply to a contributory employee instead of subsections (2) (3) and (4) of section 8 of the Act of 1937. New scale of superannuation allowances.

(2) Subject to the provisions of this Part of this Act the annual superannuation allowance to be made to a contributory employee shall be on the following scale (that is to say):—

- (a) in respect of every completed year of contributing service one-eightieth of his average remuneration ;
- (b) in respect of every year of non-contributing service one-one-hundred-and-sixtieth of his average remuneration :

Provided that in the case of any particular contributory employee the employing authority may on his becoming entitled to a superannuation allowance resolve that there shall be substituted for the said fraction of one-one-hundred-and-sixtieth any larger fraction not exceeding one-eightieth.

(3) A superannuation allowance payable to a contributory employee shall not exceed forty-eightieths of his average remuneration and in such a case as is referred to in paragraph (a) of subsection (1) of section 8 of the Act of 1937 shall not be less than—

- (a) twenty-eightieths of such remuneration ; or
- (b) one-eightieth of such remuneration in respect of each year of contributing service which he could have completed before attaining the age of compulsory retirement if he had continued to be a contributory employee



PART VI  
—cont.

until that age and one-one-hundred-and-sixtieth of such remuneration in respect of each year of non-contributing service ;

whichever is the less.

Retiring  
allowance.

**35.**—(1) A contributory employee who ceases to be employed for any reason other than resignation or dismissal in consequence of an offence of a fraudulent character or grave misconduct shall be entitled to receive a lump sum retiring allowance if—

- (a) he has completed ten years' service and is incapable of discharging efficiently the duties of his employment by reason of permanent ill health or infirmity of mind or body ; or
- (b) he has attained the age of sixty years and completed forty years' service ; or
- (c) he has attained the age of sixty-five years and completed five years' service.

(2) The retiring allowance to be made to a contributory employee shall be a sum equal to the aggregate of the following amounts namely three-eightieths of his average remuneration in respect of each completed year of contributing service and three-one-hundred-and-sixtieths of such remuneration in respect of each year of non-contributing service :

Provided that—

- (a) in the case of any particular contributory employee the employing authority may on his becoming entitled to a retiring allowance resolve that there shall be substituted for the said fraction of three-one-hundred-and-sixtieths any higher fraction not exceeding three-eightieths or in the case of the fraction of one-one-hundred-and-sixtieth referred to in paragraph (b) and sub-paragraph (iv) of paragraph (c) of this proviso any larger fraction not exceeding one-eighth ;
- (b) in the case of a contributory employee in respect of whose service a widow's pension may become payable under section 38 (Widow's pension) of this Act the amount of the retiring allowance shall be a sum equal to the aggregate of the following amounts namely one-eighth of his average remuneration in respect of each completed year of contributing service and one-one-hundred-and-sixtieth of such remuneration in respect of each year of non-contributing service or such higher fraction as may be substituted in accordance with paragraph (a) of this proviso ;
- (c) if in the case of a contributory employee who is a widower or who is divorced or judicially separated



from his wife the death of the wife or the divorce or separation has taken place on or after the date on which this Part of this Act first applied to him the amount of the retiring allowance shall be a sum equal to the aggregate of the following amounts namely:—

(i) three-eightieths of his average remuneration in respect of each completed year of contributing service since the date of the death of his wife or the divorce or the separation as the case may be ;

(ii) one-eightieth of such remuneration in respect of each completed year comprised in the remainder of his contributing service ;

(iii) three-one-hundred-and-sixtieths of such remuneration (or such higher fraction as may be substituted in accordance with paragraph (a) of this proviso) in respect of each year of non-contributing service since the date of the death of his wife or the divorce or the separation as the case may be ; and

(iv) one-one-hundred-and-sixtieth of such remuneration (or such higher fraction as aforesaid) in respect of each year comprised in the remainder of his non-contributing service ;

(d) the maximum amount of the retiring allowance payable under this section shall not exceed—

(i) in the case of any such contributory employee as is referred to in paragraph (a) or paragraph (c) of this proviso one and a half times his average remuneration ; or

(ii) in the case of any such contributory employee as is referred to in paragraph (b) of this proviso one-half of his average remuneration ;

but for the purpose of calculating such maximum amount any increase in the retiring allowance authorised by subsection (3) of this section shall be disregarded ; and

(e) if in the case of a contributory employee to whom no superannuation allowance is payable the amount of the retiring allowance calculated as aforesaid is less than—

(i) (in the case of a contributory employee who voluntarily resigns after having attained the age of sixty years and before attaining the age of compulsory retirement) the amount of his contributions ; or

(ii) (in any other case) the amount of his contributions together with compound interest thereon calculated to the date of his ceasing to be employed by



PART VI  
—cont.

the employing authority at the rate of three per centum per annum with half-yearly rests ;

the retiring allowance shall be increased by the amount of the deficiency.

(3) In the case of any contributory employee (other than a contributory employee who immediately before the appointed day was entitled by virtue of any enactment or any scheme to the payment on his death of a sum of money by way of death gratuity or other similar benefit) the amount of the retiring allowance shall be increased by one-half of one per centum in respect of each completed year of contributing service during any period before the appointed day and one-quarter of one per centum in respect of each year of non-contributing service during any such period :

Provided that where the whole or any part of the retiring allowance payable to a contributory employee falls to be calculated in respect of any completed year of contributing service during any such period as aforesaid by reference to one-eightieth of his average remuneration or in respect of any year of non-contributing service during any such period as aforesaid by reference to one-one-hundred-and-sixtieth of such remuneration one and one-half per centum shall be substituted for one-half of one per centum in respect of each such completed year of contributing service and three-quarters of one per centum shall be substituted for one-quarter of one per centum in respect of each such year of non-contributing service :

Provided also that where a higher fraction than three-one-hundred-and-sixtieths or one-one-hundred-and-sixtieth is substituted in accordance with paragraph (a) of the proviso to subsection (2) of this section the amount of the retiring allowance shall be increased in respect of each year of non-contributing service by a percentage bearing the same proportion to one-quarter of one per centum or three-quarters of one per centum (as the case may be) as the substituted fraction bears to three-one-hundred-and-sixtieths or one-one-hundred-and-sixtieth (as the case may be).

Short service  
gratuity.

**36.** A contributory employee who has completed more than five but less than ten years' service shall if he ceases to be employed on account of incapacity to discharge efficiently the duties of his employment by reason of permanent ill health or infirmity of mind or body be entitled to receive a short service gratuity of a sum equal to the amount of his average remuneration :

Provided that if the contributory employee is also entitled to a retiring allowance the short service gratuity shall be reduced by the amount of the said allowance.



## 37. If—

PART VI

—cont.

Death gratuity.

(1) a contributory employee dies and at the date of his death he has completed five years' service ; or

(2) a person who has after completing five years' service ceased for any reason other than his resignation or dismissal in consequence of an offence of a fraudulent character or of grave misconduct to be a contributory employee—

(a) dies within twelve months after so ceasing to be a contributory employee ; or

(b) after so ceasing in order to undertake national service dies within six months after the termination of such last-mentioned service ;

without having received a return of his contributions to the superannuation fund or without having become entitled to a superannuation allowance or retiring allowance or short service gratuity or without again having become a contributory employee ; or

(3) a person dies after having become entitled to a superannuation allowance in accordance with the scale prescribed by section 34 (New scale of superannuation allowances) of this Act or to a retiring allowance or short service gratuity under this Part of this Act ;

then the Corporation shall pay to his legal personal representatives out of the superannuation fund a death gratuity of a sum equal to—

(a) three-eightieths of his average remuneration in respect of each completed year of his contributing service and three-one-hundred-and-sixtieths thereof in respect of each year of his non-contributing service ; or

(b) the amount of his contributions together with compound interest thereon calculated to the date on which he ceased to hold his employment at the rate of three per centum per annum with half-yearly rests ; or

(c) (except in the case mentioned in paragraph (2) of this section) his average remuneration ;

whichever is the greatest :

Provided that—

(i) in the case of any particular contributory employee or person in respect of whose service a death gratuity is payable under this section the employing authority may on a death gratuity becoming payable to his legal personal representatives resolve that there shall be



PART VI  
—cont.

substituted for the said fraction of three-one-hundred-and-sixtieths any larger fraction not exceeding three-eightieths or that there shall be substituted for the fraction of one-one-hundred-and-sixtieth referred to in paragraph (ii) of this proviso any larger fraction not exceeding one-eightieth ;

- (ii) in the case of a contributory employee or person on whose death a widow's pension is payable under section 38 (Widow's pension) of this Act the amount of the death gratuity shall be a sum equal to one-eightieth of his average remuneration in respect of each completed year of his contributing service and one-one-hundred-and-sixtieth thereof in respect of each year of his non-contributing service unless a larger fraction is substituted in accordance with paragraph (i) of this proviso or if the capital value of the widow's pension is less than the amount of the death gratuity which would have been payable apart from this proviso a sum equal to the difference between such capital value and such amount whichever of the two sums is the greater ; and
- (iii) in the case of a person who dies after having become entitled to a superannuation allowance or a retiring allowance or short service gratuity there shall be deducted from the death gratuity a sum equal to the aggregate amount of any payments made on account of the said allowances or of the short service gratuity and in addition if the person was entitled to a superannuation allowance and had surrendered a part thereof any sum which would have been paid on account thereof but for the surrender.

Widow's  
pension

**38.**—(1) This section applies to the widow of—

- (a) a person who at the time of his death was in receipt of or entitled to a superannuation allowance in accordance with the scale prescribed by section 34 (New scale of superannuation allowances) of this Act ; or
- (b) a contributory employee who dies while in the service of the employing authority after completing ten years' service ; or
- (c) a contributory employee who after completing ten years' service ceases for any reason other than his resignation or dismissal in consequence of an offence of a fraudulent character or of grave misconduct to be employed by the employing authority and—

(i) dies within twelve months of his so ceasing ; or



(ii) after so ceasing in order to undertake national service dies within six months after the termination of such last-mentioned service ;

but without having received any return of his contributions to the superannuation fund or without the payment of a transfer value having been made in respect of him ;

but does not apply to any such widow if—

- (i) her marriage took place on or after the day on which her husband ceased to be employed by the employing authority ; or
- (ii) her husband before ceasing to be employed or if he died while still in the service of the employing authority before dying had reached the age of compulsory retirement applicable to his case or not having reached that age had reached the age of sixty years and had completed forty years' service and the marriage had taken place after he had reached the age of compulsory retirement or the age of sixty years having completed forty years' service (as the case may be) ; or
- (iii) she and her husband were at the date of his death judicially separated.

(2) A widow to whom this section applies shall subject to the provisions of this section be entitled during her life to the payment out of the superannuation fund of an annual pension.

(3) The annual amount of the pension payable under this section shall be—

- (a) in the case of the widow of such a person as is referred to in paragraph (a) of subsection (1) of this section one-third of the annual amount of the superannuation allowance of which he was in receipt or to which he was entitled at the time of his death ;
- (b) in the case of the widow of such a contributory employee as is referred to in paragraph (b) or paragraph (c) of the said subsection (1) one-third of the annual amount of the superannuation allowance to which he would have been entitled if he had ceased under the circumstances mentioned in paragraph (a) of subsection (1) of section 8 of the Act of 1937 to be employed by the employing authority immediately before the date of his death and had on so ceasing been entitled to receive a superannuation allowance :

Provided that for the purpose of calculating pursuant to this subsection the superannuation allowance to which any such



PART VI  
—cont.

contributory employee as is referred to in paragraph (b) or paragraph (c) of subsection (1) of this section would have been entitled if he had ceased to be employed by the employing authority immediately before the date of his death the employing authority may resolve that there shall be substituted for the fraction of one-one-hundred-and-sixtieth referred to in paragraph (b) of subsection (2) of the said section 34 of this Act any larger fraction not exceeding one-eightieth:

Provided also that if in either case the age of the widow was less than that of her husband by ten years or more the widow's pension shall be reduced by such an amount as shall be certified to be just by an actuary.

(4) Payment of a pension to a widow under this section shall be made at such intervals not being longer than three months as the Corporation may determine but if any widow in receipt of a pension under this section remarries such pension shall cease to be payable as from the date of remarriage.

(5) No pension shall be payable to a widow under this section in respect of any period during which she is cohabiting with a man as his wife.

(6) If a widow who is in receipt of a pension under this Part of this Act remarries or dies and the aggregate amount of the payments made to her by way of pension or to her husband or to the legal personal representatives of her husband by way of superannuation allowance retiring allowance or death gratuity is less than the amount of the death gratuity which would have been payable in respect of the death of her husband if no widow's pension had been payable in respect of her husband's service there shall be paid to her or to her legal personal representatives as the case may require a sum equal to the deficiency.

Non-return of  
contributions  
in certain cases.

**39.** No payment shall be made under section 10 of the Act of 1937—

- (a) to a contributory employee to whom a superannuation allowance under section 34 (New scale of superannuation allowances) of this Act or a retiring allowance under section 35 (Retiring allowance) of this Act is payable;
- (b) to a contributory employee to whom a short service gratuity is payable under section 36 (Short service gratuity) of this Act;
- (c) to the legal personal representatives of a contributory employee in respect of whom a death gratuity is payable under section 37 (Death gratuity) of this Act; or



(d) to the legal personal representatives of a widow to whom a pension was payable under section 38 (Widow's pension) of this Act.

PART VI  
—cont.

40.—(1) Every superannuation allowance retiring allowance short service gratuity death gratuity or widow's pension payable in accordance with the provisions of this Part of this Act shall be paid out of the superannuation fund.

Repayments to be made to superannuation fund in certain cases.

(2) Payment of any such superannuation allowance or pension shall be made at such intervals not being longer than three months as the Corporation may determine.

(3) If any extra charge is occasioned to the superannuation fund as the result of any resolution of the employing authority substituting a larger fraction of the average remuneration of any contributory employee than one-one-hundred-and-sixtieth or three-one-hundred-and-sixtieths (as the case may be) for the purpose of calculating in respect of any year of non-contributing service the amount of any superannuation allowance retiring allowance death gratuity or widow's pension payable in accordance with the provisions of this Part of this Act such extra charge shall be repaid to the superannuation fund by the employing authority.

41. In every case in which under this Part of this Act a discretion is exercisable in relation to a justices' clerk or assistant to a justices' clerk and the effect of exercising such discretion in favour of that person would if this section had not been enacted be to increase the amount from time to time payable out of the superannuation fund to or in respect of him the discretionary powers shall be exercisable by the Huddersfield Magistrates Courts Committee but a copy of every determination of that committee in reference thereto shall be sent forthwith to the Corporation who if dissatisfied therewith may within three months after the receipt thereof appeal to the Secretary of State whose decision shall be final.

Application to persons not employed by Corporation.

42.—(1) A contributory employee who becomes entitled to a superannuation allowance upon ceasing to hold his employment otherwise than in the circumstances mentioned in paragraph (a) of subsection (1) of section 8 of the Act of 1937 may within one month before ceasing to be employed notify his desire subject to and in accordance with the provisions of the first schedule to the regulations (except sub-paragraph (2) of paragraph 3 thereof) with any necessary modifications to surrender part of the superannuation allowance in consideration of the grant of a pension to either the spouse or any dependant of the

Allocation of part of pension to dependants.



PART VI  
—cont.

employee on his death of such value as according to tables prepared from time to time by the Government Actuary is actuarially equivalent at the date on which he ceased to be employed to the value of that part of the superannuation allowance which is surrendered.

(2) If a contributory employee would if he ceased to be employed be entitled to a superannuation allowance otherwise than in the circumstances mentioned in paragraph (a) of subsection (1) of section 8 of the Act of 1937 he may at any time before ceasing to be employed notify his desire to surrender part of the superannuation allowance in accordance with the provisions of the preceding subsection and if he dies before having become entitled to the allowance but after having so notified his desire to surrender a part of the allowance he shall be deemed to have become entitled to the allowance to which he would have become entitled had he retired on the day preceding the date of his death.

(3) The proviso to subsection (3) of section 10 of the Act of 1937 shall apply to a contributory employee who has given notice under the preceding provisions of this section as if for the words "rules made under the last preceding section" there were substituted the words "the provisions of section 42 (Allocation of part of pension to dependants) of the Huddersfield Corporation Act 1953".

Exclusion  
of certain  
provisions.

**43.** The provisions of—

- (a) section 9 of the Act of 1937 and of any rules made thereunder; and
- (b) section 74 (Annuities for widows) of the Huddersfield Corporation Act 1937 and of the Second Schedule to that Act as modified and adapted by the scheme made by the council on the twentieth day of May nineteen hundred and thirty-eight under section 25 of the Act of 1937;

shall not apply to any contributory employee to whom this Part of this Act applies or to the wife of any such contributory employee.

Provision as to  
general Act  
relating  
to local  
government  
super-  
annuation.

**44.** In the event of the passing during the present session of Parliament of any general Act relating to local government superannuation and containing provisions conferring upon the Minister the power to make regulations with regard to the matters to which this Part of this Act relates the foregoing provisions of this Part of this Act shall cease to have effect.



## PART VII

## FINANCE

**45.**—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act. Power to borrow.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed by this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

**46.** The Corporation may pay—

- (a) reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough ;
- (b) reasonable expenses in connection with official and courtesy visits by or on behalf of the Corporation and travelling expenses and expenses reasonably incurred by or on behalf of any member or officer of the Corporation in connection therewith ; and
- (c) reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

Expenses  
of public  
ceremonies etc.

## PART VIII

## MISCELLANEOUS

**47.** Where any allowance or pension payable under the Local Government Superannuation Act 1937 or Part VI (Superannuation) of this Act is an annual sum of an amount not exceeding twenty-six pounds the Corporation may discharge their liability in respect thereof by the payment of a lump sum representing the capital value of the annual sum. Power to compound small annual benefits.

**48.**—(1) It shall be lawful for the Corporation—

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Corporation think fit and to let such rooms and to make reasonable charges for admission to such lectures ; and

Provision of  
lectures  
exhibitions etc.



PART VIII  
—cont.

- (b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that—

- (i) the sum to be expended by the Corporation in any one financial year on the provision of lectures; and  
(ii) the sum to be expended by the Corporation in any one financial year on the provision of art exhibitions;

shall not in either case exceed the equivalent of one-third of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925 in addition to any moneys received by the Corporation under the provisions of this section.

(2) The Corporation may use or allow to be used or let any part of any public library provided by them and not at the time required for the purpose of a library for public and other meetings and for lectures and art exhibitions.

(3) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures or exhibitions given or provided in pursuance of this section.

(4) No power conferred upon the Corporation by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or that other person; or  
(b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Power to  
publish  
bulletins etc.

49. In connection with their powers under the last preceding section and under the Public Libraries Acts 1892 to 1919 the Corporation may publish and sell or dispose of bulletins journals and leaflets and documents of historical or literary interest having a local connection.



**50.**—(1) Where a building preservation order is in force as respects any building in the borough and it appears to the Corporation that reasonable steps are not being taken for properly preserving the building the Corporation may with the consent of the Minister make such contribution as they may think fit towards the cost of the maintenance of such building.

PART VIII

—cont.

Maintenance of  
buildings of  
architectural  
interest.

(2) In this section the expression “building preservation order” has the meaning assigned to it by section 29 of the Act of 1947.

**51.**—(1) The Corporation may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a cemetery provided by the Corporation and the following provisions shall apply in relation to any such agreement:—

Agreements to  
maintain  
graves and  
tombstones.

(a) The said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities ;

(b) If and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum ;

(c) At the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the Corporation may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment ;

(d) The amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the cemetery.

(2) In this section—

the expression “cemetery” includes a burial ground and a crematorium ;

the expression “grave” includes a grave space niche or urn ;

the expression “tombstone” includes a monument or other memorial of a deceased person.

**52.**—(1) The Corporation may provide and maintain recreational social and welfare facilities for their employees.

Recreational  
and other  
facilities for  
employees.

(2) For the purposes aforesaid the Corporation may—

(a) acquire buildings or acquire or appropriate land and erect buildings thereon ;



PART VIII  
—cont.

- (b) with the consent of the Minister adapt any premises or erect any buildings on any land belonging to them but not already appropriated for such purposes ;
- (c) make such charges as they think fit for the use of such premises ; and
- (d) make regulations for the management of such premises.

(3) No power conferred upon the Corporation by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or that other person ; or
- (b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Robes of office. **53.** The Corporation may provide and maintain robes of office for the use of the mayor aldermen and councillors for the time being of the borough :

Provided that the robes provided by the Corporation under the powers of this section shall remain the property of the Corporation.

Extension of power to let market stalls etc.

**54.** Section 53 (Power to let stalls &c.) of the Huddersfield Waterworks and Improvement Act 1876 shall have effect as if for the words “ not exceeding three years ” there were substituted the words “ not exceeding seven years ”.

Restriction on use of road at Digley Reservoir.

**55.**—(1) In this section the expression “ the protected road ” means the road situate in the urban district of Holmfirth being Work No. 2 authorised by section 24 (Power to make waterworks) of the Huddersfield Corporation Act 1937.

(2) The Corporation may by a conspicuous notice placed in such a position either on or near the protected road as to be visible at a reasonable distance from the protected road to the drivers of vehicles approaching it prohibit the use of the protected road by any vehicle the laden weight of which exceeds five tons.



(3) Any person who drives or causes or permits to be driven a vehicle on the protected road in contravention of a notice so placed as aforesaid shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

56. As from the appointed day section 2 of the Steam Whistles Act 1872 shall in its application to the borough have effect as if the words “electrically or mechanically operated whistle trumpet siren or hooter or other similar instrument” were therein substituted for the words “steam whistle or steam trumpet”. sirens etc.  
used in  
factories etc.

57. If any person without the consent of the Corporation uses in connection with any trade business calling or profession the armorial ensigns of the borough (or armorial ensigns so closely resembling the same as to be calculated to deceive) in such a manner as to be calculated to lead to the belief that he is duly authorised so to use the armorial ensigns of the borough he may at the suit of the Corporation be restrained by injunction from continuing to use the same: Restriction  
on use of  
borough  
armorial  
ensigns.

Provided that nothing in this section shall be construed as affecting the right (if any) of the proprietor of a trade mark registered under the Trade Marks Act 1938 and containing such armorial ensigns to continue to use such trade mark.

58.—(1) In this section—

the expression “briquette” means a manufactured fuel consisting mainly of coal dust and having a square or rectangular section; and

the expression “vehicle” means any carriage cart wagon truck barrow or other means of carrying briquettes by land in whatever manner the same may be drawn or propelled but does not include a railway truck or wagon.

Sale of  
briquettes.

(2) Notwithstanding anything contained in Part VII (Sale of coke wood fuel &c.) of the Huddersfield Corporation Act 1949 briquettes may be sold by number and the following provisions instead of the provisions of the said Part VII shall apply to briquettes which are sold or intended to be sold by number:—

(a) If any seller delivers or causes to be delivered to the purchaser or his agent a less number of briquettes than is purported to be sold he shall be liable for every such offence on the first occasion to a penalty not exceeding



PART VIII  
—cont.

five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds ;

- (b) (i) Where more than twenty-five briquettes are delivered by means of a vehicle to a purchaser the seller shall therewith deliver or cause to be delivered to the purchaser or his agent before any of the briquettes are unloaded a ticket or note stating in legible figures the number of briquettes upon which the purchase price is based ;
- (ii) If default is made in complying with the requirements of this paragraph with respect to the delivery of a ticket or note or if the number is less than the number expressed in the ticket or note the seller of the briquettes or the person in charge of the vehicle as the case may be shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds ;
- (iii) If any person attending on any such vehicle having received any such ticket or note for delivery to the purchaser fails to deliver it as required by this paragraph or on being requested so to do to exhibit it to any inspector of weights and measures or other officer appointed for the purpose by the Corporation he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds ;
- (c) (i) Every person who within the borough sells or offers or exposes for sale any briquettes shall cause his name and place of business and residence to be registered with the Corporation and on each occasion on which he shall change his registered place of business or residence he shall within seven days thereafter cause particulars of such change to be registered with the Corporation ;
- (ii) If any person contravenes the provisions of this paragraph he shall be liable to a penalty not exceeding five pounds ;
- (d) (i) Every vehicle carrying briquettes for sale or for delivery on sale by retail shall have the seller's name and place of business clearly marked and visible on such vehicle :

Provided that in the case of a vehicle used by a person whose only interest in the briquettes to be



delivered is that of a carrier it shall be a sufficient compliance with this paragraph if the name of such person is clearly marked and visible on the vehicle ;

- (ii) Any person who in the borough uses a vehicle to which this paragraph applies and which is not in conformity therewith shall be liable to a penalty not exceeding five pounds.

(3) The foregoing provisions of this section shall come into operation on but not until the first day of January nineteen hundred and fifty-four.

(4) (a) The Corporation shall as soon as may be after the passing of this Act cause public notice to be given of the effect of this section by advertisement in a local newspaper circulating in the borough.

(b) No evidence shall be required in any proceedings that the provisions of this subsection have been complied with.

59.—(1) If any person for the purpose of obtaining for himself or any other person the occupation of any house belonging to the Corporation or a rebate in the rent of any house belonging to the Corporation or a reduction in the amount of any payment due to the Corporation under the Children and Young Persons Act 1933 the Children Act 1948 the Education Acts 1944 to 1948 or any regulations made thereunder—

False  
statements to  
obtain rent  
rebate etc.

(a) knowingly makes to the Corporation or any of their employees a false statement or false representation relating to his or that other person's need for accommodation or ability to pay the rent or make the payment ; or

(b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular ;

he shall be liable to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such penalty and imprisonment.

(2) If any person is convicted of an offence under this section the court may order him to pay to the Corporation the amount of the rebate or reduction so obtained or (as the case may be) may terminate the tenancy of the house.

(3) Section 120 (False statements to obtain rent rebate etc.) of the Huddersfield Corporation Act 1949 is hereby repealed.



## PART IX

## GENERAL

Evidence of  
appointments  
authority etc.

**60.**—(1) In any proceedings under any enactment—

- (a) a document purporting to be certified by the town clerk as a copy of a resolution order or report passed or made by the council or by any committee thereof on a specified date shall be evidence that that resolution order or report was duly passed or made by the council or that committee on the said date ;
- (b) a document purporting to be so certified as a copy of a minute duly drawn up entered and signed in accordance with paragraph 3 of Part V of the Third Schedule to the Act of 1933 of the proceedings of a meeting of the council or of any committee thereof on a specified date shall be evidence to the same extent as the original minute ;
- (c) a document purporting to be so certified as a copy of the appointment of or of any authority given to an officer of the council or any committee thereof on a specified date shall be evidence that that appointment or authority was duly made or given by the council or that committee on the said date.

(2) In this section the expression “ officer ” includes a servant solicitor or agent.

(3) Section 286 of the Act of 1936 shall cease to apply to the council.

The appointed  
day.

**61.**—(1) For the purposes of this Act (except Part VI (Superannuation) thereof) the expression “ the appointed day ” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the date fixed thereby ; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.



## (4) Either—

PART IX  
—cont.

- (a) a copy of any such newspaper containing any such notice ; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business or using any premises for that purpose ; and
- (b) had before that day duly applied for the registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 63 (Appeals) of this Act.

62. Proceedings in respect of an offence created by or under this Act (except under section 58 (Sale of briquettes) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

63.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action ; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;



**PART IX**  
—*cont.*

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action ; and
- (ii) that person may carry on that business and use those premises for that purpose.

**Inquiries by  
Ministers.**

**64.** The Minister the Minister of Civil Aviation the Minister of Fuel and Power and the Minister of Transport may hold such inquiries as they may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

**Application of  
provisions of  
Act of 1936.**

**65.** The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say) :—

- Section 271 (Interpretation of “ provide ”) ;
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;
- Section 276 (Power of local authority to sell certain materials) ;
- Section 277 (Power of councils to require information as to ownership of premises) ;
- Section 283 (Notices to be in writing ; forms of notices &c.) ;
- Section 284 (Authentication of documents) ;
- Section 285 (Service of notices &c.) ;
- Section 287 (Power to enter premises) ;
- Section 288 (Penalty for obstructing execution of Act) ;
- Section 289 (Power to require occupier to permit works to be executed by owner) ;
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises : power to order payment by instalments) ;
- Section 293 (Recovery of expenses &c.) ;
- Section 294 (Limitation of liability of certain owners) ;
- Section 295 (Power of local authority to grant charging orders) ;
- Section 296 (Summary proceedings for offences) ;



- Section 297 (Continuing offences and penalties) ;  
 Section 299 (Inclusion of several sums in one complaint &c.) ;  
 Section 304 (Judges and justices not to be disqualified by liability to rates) ;  
 Section 328 (Powers of Act to be cumulative) ;  
 Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

PART IX  
—cont.

Provided that the said sections 277 287 289 291 293 294 295 299 and 329 shall only apply to the provisions contained in Part IV (Streets) and Part V (Sanitation buildings etc.) of this Act.

66. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

67. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Act.

*Table of Statutes referred to in this Act*

| Short title                                                      | Session and chapter       |
|------------------------------------------------------------------|---------------------------|
| Railway Passenger Duty Act 1842 ... ..                           | 5 & 6 Vict. c. 79.        |
| Lands Clauses Consolidation Act 1845 ... ..                      | 8 & 9 Vict. c. 18.        |
| Towns Improvement Clauses Act 1847 ... ..                        | 10 & 11 Vict. c. 34.      |
| Larceny Act 1861 ... ..                                          | 24 & 25 Vict. c. 96.      |
| Huddersfield Improvement Act 1871 ... ..                         | 34 & 35 Vict. c. cli.     |
| Steam Whistles Act 1872 ... ..                                   | 35 & 36 Vict. c. 61.      |
| Local Loans Act 1875 ... ..                                      | 38 & 39 Vict. c. 83.      |
| Huddersfield Waterworks and Improvement Act 1876 ... ..          | 39 & 40 Vict. c. c.       |
| Telegraph Act 1878 ... ..                                        | 41 & 42 Vict. c. 76.      |
| Huddersfield Corporation Tramways Act 1900 ...                   | 63 & 64 Vict. c. cclxvii. |
| Public Health Acts Amendment Act 1907 ...                        | 7 Edw. 7 c. 53.           |
| Huddersfield Corporation Act 1913 ... ..                         | 3 & 4 Geo. 5 c. xcv.      |
| Acquisition of Land (Assessment of Compensation) Act 1919 ... .. | 9 & 10 Geo. 5 c. 57.      |
| Huddersfield Corporation (General Powers) Act 1920 ... ..        | 10 & 11 Geo. 5 c. cxlv.   |
| Land Charges Act 1925 ... ..                                     | 15 & 16 Geo. 5 c. 22.     |
| Roads Improvement Act 1925 ... ..                                | 15 & 16 Geo. 5 c. 68.     |
| Rating and Valuation Act 1925 ... ..                             | 15 & 16 Geo. 5 c. 90.     |



| Short title                                                                           | Session and chapter              |
|---------------------------------------------------------------------------------------|----------------------------------|
| Road Traffic Act 1930 ... ..                                                          | 20 & 21 Geo. 5 c. 43.            |
| Children and Young Persons Act 1933 ... ..                                            | 23 Geo. 5 c. 12.                 |
| Local Government Act 1933 ... ..                                                      | 23 & 24 Geo. 5 c. 51.            |
| Public Health Act 1936 ... ..                                                         | 26 Geo. 5 & 1 Edw. 8<br>c. 49.   |
| Huddersfield Corporation (Trolley Vehicles) Act<br>1936 ... ..                        | 26 Geo. 5 & 1 Edw. 8<br>c. liii. |
| Local Government Superannuation Act 1937 ...                                          | 1 Edw. 8 & 1 Geo. 6<br>c. 68.    |
| Huddersfield Corporation Act 1937 ... ..                                              | 1 Edw. 8 & 1 Geo. 6<br>c. lxix.  |
| Trade Marks Act 1938 ... ..                                                           | 1 & 2 Geo. 6 c. 22.              |
| Food and Drugs Act 1938 ... ..                                                        | 1 & 2 Geo. 6 c. 56.              |
| Statutory Orders (Special Procedure) Act 1945 ...                                     | 9 & 10 Geo. 6 c. 18.             |
| Acquisition of Land (Authorisation Procedure)<br>Act 1946 ... ..                      | 9 & 10 Geo. 6 c. 49.             |
| Transport Act 1947 ... ..                                                             | 10 & 11 Geo. 6 c. 49.            |
| Town and Country Planning Act 1947 ... ..                                             | 10 & 11 Geo. 6 c. 51.            |
| Ministry of Health Provisional Order Confirma-<br>tion (Huddersfield) Act 1948 ... .. | 11 & 12 Geo. 6 c. xxviii.        |
| Superannuation (Miscellaneous Provisions) Act<br>1948 ... ..                          | 11 & 12 Geo. 6 c. 33.            |
| Children Act 1948 ... ..                                                              | 11 & 12 Geo. 6 c. 43.            |
| Lands Tribunal Act 1949 ... ..                                                        | 12 & 13 Geo. 6 c. 42.            |
| Civil Aviation Act 1949 ... ..                                                        | 12 & 13 Geo. 6 c. 67.            |
| Huddersfield Corporation Act 1949 ... ..                                              | 12 13 & 14 Geo. 6<br>c. xxxvii.  |
| Justices of the Peace Act 1949 ... ..                                                 | 12 13 & 14 Geo. 6<br>c. 101.     |

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1 & 2 ELIZ. 2 Ch. xxxiii

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## ARRANGEMENT OF SECTIONS

### PART I

#### PRELIMINARY

##### Section

1. Short title.
2. Division of Act into Parts.
3. Incorporation of Acts.
4. Interpretation.

### PART II

#### WORKS

5. Power to make works.
6. Works to form part of water undertaking.
7. Period for completion of works.
8. Power to take waters.
9. Restriction on taking water from Clydach stream.
10. Temporary stoppage of streets.
11. Sheep dipping and washing.
12. Amendment of section 18 of Act of 1920.
13. Penalties.
14. As to existing compensation gauge.

### PART III

#### LANDS

15. Power to acquire lands.
16. Correction of errors in deposited plan and book of reference.
17. Acquisition of part only of certain properties.
18. Power to expedite entry.
19. Power to enter for survey or valuation.
20. Disregard of recent improvements and interests.
21. Extinction of private rights of way.
22. Power to acquire easements only.



PART IV

FINANCE AND MISCELLANEOUS

Section

- 23. Power to borrow.
- 24. Saving for powers of Treasury.
- 25. Saving for town and country planning.
- 26. Crown rights.
- 27. Costs of Act.